

## 26STCV08160 26STCV08160

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-07-17

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The Court hereby

distributes a tentative Minute Order for the July 17, 2026 ISC. The parties are welcome to provide input and propose modifications to any aspect of the minute order at the Initial Status

Conference. If all parties submit on the

tentative minute order prior to the commencement of the July 17, 2026 ISC, the

Court will adopt the tentative minute order, and the parties need not

appear. However, if there is any matter

that any party would like to discuss, including any proposed change to this

tentative minute order, that party should not submit on this tentative but

instead appear at the ISC to raise the issue.

To avoid a failure to appear, please make sure to check in with

Department 9 court staff and wait for the case to be called unless you receive

notification that all parties have submitted on the tentative minute order.

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[TENTATIVE] MINUTE

ORDER

At the initial

status conference today, Counsel for HUMBLE

HANDS CARE LLC clarified that she does

not represent the Co-Defendant COMFORT KEEPERS.

In the Joint Report, Defendant HUMBLE HANDS CARE, LLC asserts

that although the named plaintiff in this action did not sign an arbitration

agreement, multiple members of the putative class members have signed

arbitration agreements with class action waivers. The parties are ordered to meet and confer

regarding their respective proposals as to how the Court may best manage this issue, including the possibility of Plaintiff adding another class representative who has signed the arbitration agreement with the class action waiver or sequencing discovery and litigation in a way that most effectively and efficiently addresses this issue, or any other proposal that the parties may have. In their meet and confer efforts, the Court encourages the parties to review the Court of Appeal's decisions in *Hendershot v. Ready to Roll Transportation, Inc.*, 228 Cal. App. 4th 1213, 1223 (2014) and *Sky Sports, Inc. v. Superior Ct.* (2011) 201 Cal. App. 4th 1363, 1369. After the parties' meet and confer efforts, the parties must file a joint statement with either a joint proposal or the parties' respective proposals as to the best manner for structuring discovery and litigation of this issue. The parties are ordered to file and serve the Joint Statement by no later than September 7, 2026 and to appear for a status conference to address this issue on September 14, 2026 at 10 am.

Plaintiff has filed proof of service of the operative Summons and Complaint as to certain defendants who have not timely responded to service of the operative Summons and Complaint, including COMFORT KEEPERS.

The time to respond for these defendants who have been served has already lapsed.

If any Defendant fails to timely respond to the service of the operative Summons and Complaint by filing a Notice of Appearance, Plaintiff must pursue that Defendant's default with diligence.

The Court reminds the parties that ultimately, the Court may not enter default judgment in an amount exceeding the amount demanded in the Complaint. (CCP 585(b).) The Court may not grant relief not demanded in the complaint by default judgment even though that relief otherwise would have been proper. (CCP § 580(a); *Airs Aromatics, LLC v. CBL Data Recovery Technologies, Inc.* (2018) 23 Cal.App.5th 1013, 1018 (default judgment for sum in excess of that demanded in complaint is void). "It is fundamental to the concept of due process that a defendant be given notice of the existence of a lawsuit and notice of the specific relief which is sought in the complaint served upon him." (*Marriage of Lippel* (1990) 51 Cal.3d

1160, 1166 [emphasis added].)

Accordingly, prior to seeking any Defendant's default, Plaintiff may wish to review the operative Complaint to determine whether the operative Complaint gives notice of the amount of damages that Plaintiff seeks to recover in the event of a default judgment; if the operative Complaint fails to do so, it may be futile for Plaintiff to seek entry of Defendant's default without first amending the Complaint to clearly state and give notice of the amount of damages that Plaintiff is seeking to recover in the event of a default judgment. Defendant Humble Hands states in court today that it has no objection to Plaintiff filing an amended complaint for this limited purpose – to identify the dollar amount of damages sought. In the event that Plaintiff wishes to amend the Complaint for this purpose, the Court hereby lifts the stay to grant Plaintiff leave to file an amended complaint. If Defendant again fails to respond upon being served with the amended complaint, a request for entry of Defendant's default on the Amended Complaint may then possibly lead to a request for entry of default judgment in an amount equal to or less than that stated in the Amended Complaint. To be clear, the Court is not ordering Plaintiff to amend the operative Complaint; if, after considering the above, Plaintiff voluntarily wishes to amend the operative Complaint to give notice of the amount of damages that Plaintiff seeks to recover in the event of a default judgment, the Court hereby grants leave for Plaintiff to do so.

By no later than August

10, 2026, Plaintiff's Counsel must file either a request for entry of COMFORT KEEPERS's default or a declaration explaining the failure to seek and obtain COMFORT KEEPERS's default, setting forth any and all efforts undertaken to obtain COMFORT KEEPERS's default, and explaining why sanctions (including monetary sanctions of at least \$1,000) should not be imposed for failure to timely seek COMFORT KEEPERS's default, in compliance with California Rules of Court, Rule 3.720. Failure to comply by August 10, 2026 may result in the Court setting an OSC re sanctions.

The previously imposed stay on discovery remains in effect.

The Initial Status

Conference is continued to September 14, 2026 at 8:30 am. The parties are to file an updated Joint Initial Status Conference Report by no later than September 7, 2026 in compliance with the Court's Initial Status Conference order.

Plaintiff's

Counsel is ordered to give notice to all other parties and file proof of

service of such.